AGREEMENT

Template · 2 signers · three pages

This Agreement (the "Agreement") is entered into on the date of the last signature below (the "Effective Date") by and between Party 1 and Party 2, each a "Party" and together the "Parties".

Party 1: _____ of _____

Party 2: _____ of _____

Replace the bracketed text with the particulars of this engagement before sending. Every printed line is where a signer writes; the boxes that collect each mark are placed on top of them.

1. Purpose

The Parties wish to [describe the relationship, engagement, or transaction this Agreement governs]. This Agreement sets out the terms on which they will do so.

2. Term

This Agreement begins on the Effective Date and continues until [end date or event], unless ended earlier under Section 6. The Parties may extend it in writing signed by each of them.

3. Scope and Responsibilities

3.1 [Party 1 / the Signer] will [describe deliverables, services, or obligations].
3.2 Party 2 will [describe deliverables, services, or obligations].
3.3 Each Party will perform its obligations in a professional manner, in good faith, and in keeping with any schedule the Parties agree in writing.

4. Compensation

In consideration of the obligations in Section 3, [paying Party] will pay [receiving Party] [amount or rate] [on the following schedule]. Invoices are due within [number] days of receipt. Amounts unpaid after that date accrue interest at [rate] per month or the highest rate the law allows, whichever is lower.

5. Confidentiality

Each Party will keep confidential any non-public information it receives from another Party in connection with this Agreement, use it only for the purposes of this Agreement, and disclose it only to those who need it and are bound to keep it confidential. This obligation survives the end of this Agreement for [number] years, and does not apply to information that is or becomes public through no fault of the receiving Party, was already known to it, or must be disclosed by law.

6. Termination

6.1 Either Party may end this Agreement on [number] days' written notice to the others.
6.2 A Party may end this Agreement immediately by written notice if another Party materially breaches it and does not cure the breach within [number] days of being told of it.
6.3 On termination, each Party will pay what it owes for work done to that date, return or destroy the other Parties' confidential information, and the Sections that by their nature should survive (including 5, 7 and 8) will survive.

7. Governing Law and Disputes

This Agreement is governed by the laws of [state / province / country]. The Parties will try in good faith to resolve any dispute by discussion first; a dispute not resolved within [number] days may be brought before the courts of [place], which have exclusive jurisdiction.

8. General

8.1 Entire agreement. This Agreement is the whole agreement between the Parties on its subject and replaces every earlier discussion and writing.
8.2 Changes. A change to this Agreement is effective only if it is in writing and signed by every Party.
8.3 Counterparts and electronic signatures. This Agreement may be signed in counterparts, each of which is an original and all of which are one instrument. A signature delivered electronically, including through an electronic signature service, has the same effect as an original.
8.4 Notices. A notice under this Agreement is in writing and delivered by hand, courier or email to the address a Party gives below, and is effective when received.

IN WITNESS WHEREOF, the Parties have signed this Agreement as of the Effective Date.

PARTY 1

Name (printed): _____

Signature: _____

Date: _____

PARTY 2

Name (printed): _____

Signature: _____

Date: _____